

CHAPTER 51

Licensing (Scotland) Act, 1962

ARRANGEMENTS OF SECTIONS

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Section

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Section

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SCHEDULES:

First Schedule—New Forms of Certificate.

Second Schedule—Amendments of the Principal Act.

Third Schedule—Repeal of Enactments.

An Act to make provision in Scotland for the grant by licensing courts of new forms of certificate for the sale by retail of exciseable liquor; to amend the law in Scotland regarding the sale and supply of exciseable liquor and regarding licensed premises and clubs; to prescribe the hours during which premises in Scotland licensed for the sale and supply of exciseable liquor for consumption off the premises may remain open for the serving of customers with such liquor; to restrict the carriage of exciseable liquor on public service vehicles used as contract carriages; and for purposes connected with the matters aforesaid.

[1st August, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Restaurants and hotels

Licensing
courts may
grant
restaurant
certificates and
restricted hotel
certificates.

1.—(1) The power to grant certificates for the sale by retail of exciseable liquor conferred on licensing courts by subsection (1) of section thirty-two of the Licensing (Scotland) Act, 1959 (hereafter in this Act referred to as "the principal Act"), shall include, in addition to the power to grant hotel, public house and off-sale certificates as provided in subsection (2) of the said section, a power to grant under the principal Act restaurant certificates and restricted hotel certificates, as defined respectively in the next two following subsections.

(2) A restaurant certificate is a certificate which—

(a) is granted in respect of premises which—

(i) are structurally adapted and bona fide used, or intended to be used, for the purpose of habitually providing meals for the accommodation of persons frequenting the premises ;

(ii) so far as they are used, or intended to be used, for the said purpose, are principally used, or intended to be used, for providing the customary main meal at midday or in the evening, or both ; and

(iii) do not contain a bar counter ; and

(b) authorises the holder thereof, in accordance with the appropriate excise licence, to sell or supply exciseable liquor in the said premises to persons taking table meals there, for consumption by such a person as an ancillary to his meal.

(3) A restricted hotel certificate is a certificate which—

(a) is granted in respect of a hotel which—

(i) is structurally adapted and bona fide used, or intended to be used, for the purpose of habitually providing the customary main meal at midday or in the evening, or both, for the accommodation of persons frequenting the premises of such hotel ;

(ii) so far as it is used, or intended to be used, for the purpose of providing meals to persons who are not residing there, is principally used, or intended to be used, for providing the customary main meal at midday or in the evening, or both ; and

(iii) does not contain a bar counter ; and

(b) authorises the holder thereof, in accordance with the appropriate excise licence,—

(i) to sell or supply exciseable liquor in the said premises to persons taking table meals there, for consumption by such a person as an ancillary to his meal ;

(ii) to sell or supply exciseable liquor in those premises to persons residing there, for consumption on the premises by such a person or by a private friend of such a person who is bona fide entertained by, and at the expense of, that person ;

(iii) to supply exciseable liquor in those premises to any private friends of a person residing there who are bona fide entertained by, and at the expense

of, that person, for consumption on the premises by such a friend entertained as aforesaid ;

(iv) to sell or supply exciseable liquor in those premises to persons residing there, for consumption by such a person or by a private friend of such a person who is bona fide entertained by, and at the expense of, that person as an ancillary to a meal supplied at, but to be consumed off, the premises.

(4) Subject to the provisions of the principal Act and this Act, a restaurant certificate and a restricted hotel certificate shall be in the appropriate form set out in the First Schedule to this Act.

Additional provisions regarding restaurant and restricted hotel certificates.

2.—(1) On granting or transferring a restaurant or a restricted hotel certificate in respect of any premises a licensing court shall, if as regards the use of the premises for the provision of the customary main meals it appears to them, that it is only for the customary main meal at midday, or only for the customary main meal in the evening, that the premises fall within sub-paragraph (ii) of paragraph (a) of subsection (2) or, as the case may be, sub-paragraph (ii) of paragraph (a) of subsection (3) of the last foregoing section, insert in the certificate a condition that there shall be no permitted hours in the premises in the evening, or that there shall be permitted hours in the premises only in the evening, as the case requires.

(2) Where—

- (a) the holder of a public house certificate in respect of any premises applies to the licensing court under Part II of the principal Act for a new certificate, being a restaurant certificate, in respect of those premises, or
- (b) the holder of a hotel certificate in respect of any premises applies as aforesaid for a new certificate, being a restricted hotel certificate, in respect of those premises,

then—

- (i) if such new certificate is granted by the licensing court, the grant shall not require confirmation by the court of appeal as provided in section forty-four of the principal Act ; and
- (ii) if such application is refused by the licensing court, it shall be competent to appeal to the court of appeal under section forty-nine of the principal Act.

(3) Section fifty-four of the principal Act (which provides for the provisional grant of hotel and public house certificates), together with the provisions of section twelve of this Act, shall apply for the purpose of the provisional grant of restaurant and restricted hotel certificates as they apply for the purpose of the provisional grant of hotel and public house certificates.

(4) Section sixty of the principal Act (which relates to the grant of a special permission to the holder of a hotel or a public house certificate) shall apply for the purpose of the grant of a special permission to the holder of a restaurant or a restricted hotel certificate as it applies for the purpose of the grant of a special permission to the holder of a hotel or a public house certificate so, however, that a special permission granted to the holder of a restaurant or a restricted hotel certificate shall be subject to a condition that the sale of exciseable liquor under the authority of the permission shall be ancillary to the provision of substantial refreshment.

(5) Sections sixty-one and sixty-two of the principal Act (which provide for control by licensing courts over the structure of premises for which a hotel or a public house certificate is held) shall have effect in relation to premises for which a restaurant or a restricted hotel certificate is held as they have effect in relation to the first-mentioned premises.

(6) Section eighty-two of the principal Act (which restricts the sale and supply of exciseable liquor in State management districts) shall not apply to anything done under the authority of a restaurant or a restricted hotel certificate.

(7) Section one hundred and eleven of the principal Act (which provides that while a no-licence resolution is in force in any area the licensing court within whose jurisdiction such area is situated shall have power, subject to certain conditions, to grant hotel or public house certificates for premises situated in the area, and that certificates so granted shall be deemed to contain certain special conditions) shall have effect as if it provided instead that such a licensing court may, if they are satisfied that in the special circumstances of the case a certificate is reasonably required, grant one or more restaurant or restricted hotel certificates for premises situated in the area.

(8) A certificate granted by a licensing court by virtue of the said section one hundred and eleven and subsisting at the date on which this section comes into force shall as from such date—

(a) if it is a hotel certificate, be deemed to be a restricted hotel certificate, and

(b) if it is a public house certificate, be deemed to be a restaurant certificate,

and in either case shall have effect as from the said date as if it had been so granted in the appropriate form set out in the First Schedule to this Act.

The permitted hours

3.—(1) The provisions of the principal Act, and the following provisions of this Act, relating to the permitted hours shall not apply to off-sale premises.

Application
and effect of
permitted
hours
provisions.

(2) On granting or transferring a hotel or a public house certificate in respect of any premises a licensing court shall, if the applicant so requests and if they are satisfied—

(a) that a part of the premises (hereafter in this subsection referred to as “the off-sale part”) is structurally adapted for the sale and supply of exciseable liquor for consumption off the premises; and

(b) that there is no internal communication to which customers have access connecting the off-sale part with a part of the premises used, or intended to be used, for the sale and supply of exciseable liquor for consumption on the premises, or that any such internal communication is capable of being closed to customers;

insert in the certificate the following conditions, namely—

(i) a condition that the off-sale part (which shall be specified in the condition) shall not be used for the sale or supply of exciseable liquor for consumption on the premises;

(ii) a condition that any internal communication to which customers have access connecting the off-sale part with a part of the premises used for the sale and supply of exciseable liquor for consumption on the premises shall be closed to customers during any time when customers are present in any part of the premises; and

(iii) a condition that no customers shall be permitted to use any internal communication for the purpose of passing from one part of the premises to another part thereof;

and so long as the certificate is subject to the said conditions, the provisions of the principal Act, and the following provisions of this Act, relating to the permitted hours shall not apply to the off-sale part.

At the general half-yearly meeting of any licensing court held in October, nineteen hundred and sixty-two, the holder of a hotel or a public house certificate may, notwithstanding that such certificate does not require to be renewed by the court at that meeting, request the court to insert in the certificate the conditions set out in paragraphs (i) to (iii) of this subsection, and in relation to such a request this subsection shall have effect as if for the words from the beginning of the subsection to “so requests” there were substituted the words “A licensing court shall, if the holder of a hotel or a public house certificate so requests”.

(3) Nothing in subsection (1) of section one hundred and twenty-one, or subsection (1) of section one hundred and twenty-two, of the principal Act (which sections restrict the sale and supply of exciseable liquor in licensed premises, clubs and licensed canteens except during the permitted hours) shall prohibit or restrict—

- (a) the taking of exciseable liquor from any premises by a person residing there ; or
- (b) the consumption of exciseable liquor in any premises at any time within ten minutes after the conclusion of the permitted hours in the afternoon or evening, as the case may be, if such liquor was supplied in those premises during the permitted hours ; or
- (c) the taking of exciseable liquor from any premises at any time within ten minutes after the conclusion of the permitted hours in the afternoon or evening, as the case may be, if such liquor was supplied in those premises during the permitted hours and was not supplied or taken away in an open vessel ; or
- (d) the supply of exciseable liquor in any premises, for consumption on those premises, to any private friends of a person residing there who are bona fide entertained by, and at the expense of, that person, or the consumption by such friends of exciseable liquor so supplied to them.

(4) Nothing in the principal Act or this Act shall be taken to require any premises to be open for the sale or supply of exciseable liquor during the permitted hours.

4.—(1) Subject to the provisions of the principal Act and this Act, the permitted hours in licensed premises (other than public houses) and in registered clubs and licensed canteens shall—

- (a) on weekdays, be the period between eleven in the morning and half-past two in the afternoon and the period between five and ten in the evening ; and
- (b) on Sundays, be the period between half-past twelve and half-past two in the afternoon and the period between half-past six and ten in the evening so, however, that for the purpose of the sale or supply of exciseable liquor for consumption off the premises there shall be no permitted hours in such licensed premises or clubs on Sundays.

(2) Subject to the provisions of the principal Act and this Act, the permitted hours in public houses shall on weekdays be the period between eleven in the morning and half-past two in the afternoon and the period between five and ten in the evening, and (except as provided in section eight of this Act) there shall be no permitted hours in public houses on Sundays.

(3) The following provisions of the principal Act shall cease to have effect, namely—

sections one hundred and twenty-three, one hundred and twenty-four and one hundred and twenty-five (permitted

Permitted hours in licensed premises, registered clubs and licensed canteens.

hours in licensed premises, registered clubs and licensed canteens);

section one hundred and twenty-seven (early-closing certificates);

sections one hundred and forty-seven and one hundred and sixty-six (offences in connection with sale of liquor to travellers);

condition (4) in the form of certificate for a hotel set out in the Second Schedule (hotel not to be open for sale of exciseable liquor on Sundays except for accommodation of lodgers and travellers);

and a condition in any certificate subsisting at the date on which this section comes into force, being a condition inserted in such certificate by the licensing court by virtue of the said section one hundred and twenty-seven, shall also cease to have effect as from the said date.

Alternative
permitted
hours in
certain
athletic clubs
during winter.

5.—(1) A registered club may apply to the sheriff for any one of the following orders, that is to say—

(a) an order providing that during the winter period the permitted hours in the club on weekdays shall not be those set out in paragraph (a) of subsection (1) of section four of this Act, but shall instead be the period between eleven in the morning and two in the afternoon and the period between four and half-past nine in the evening; or

(b) an order providing that during the winter period the permitted hours in the club on Sundays shall not be those set out in paragraph (b) of the said subsection (1), but shall instead be the period between half-past twelve and two in the afternoon and the period between four and eight in the evening, and that for the purpose of the sale or supply of exciseable liquor for consumption off the premises there shall be no permitted hours in the club on Sundays; or

(c) an order which contains both the aforesaid provisions; and the sheriff shall, if in his opinion the conditions set out in the next following subsection are satisfied, make the order applied for.

(2) The conditions referred to in the foregoing subsection are—

(a) that the premises of the club are structurally adapted and bona fide used, or intended to be used, wholly or mainly for the purpose of providing facilities in connection with the carrying on by members of the club and their guests of athletic sports or athletic games;

- (b) that one or more of such sports or games is or are usually carried on out of doors and, when so carried on, can (unless artificial lighting is used) only be carried on during the hours of daylight ;
- (c) that the said premises are regularly used, or are intended regularly to be used, during the winter period, for providing facilities in connection with the carrying on by members of the club and their guests, during the hours of daylight, of such a sport or game as is mentioned in the last foregoing paragraph ;
- (d) that having regard to the time at which the said sport or game is usually carried on by members of the club and their guests, the permitted hours set out in paragraph (a) or (b) or paragraphs (a) and (b) (as the case may be) of subsection (1) of section four of this Act are not suitable for the supply of exciseable liquor in the said premises to persons who participate in that sport or game.

(3) On an application for an order being made under subsection (1) of this section by any club the sheriff clerk shall forthwith give notice thereof to the chief constable who may, within twenty-one days of the date of the receipt by him of such notice, lodge with the sheriff clerk objections to the making of such order on the ground that one or more of the conditions set out in paragraphs (a) to (d) of the last foregoing subsection has not or have not been satisfied in relation to the club, and shall, on lodging any such objections, send a copy thereof to the secretary of the club ; and if any such objections are lodged and not withdrawn, the sheriff shall as soon as may be hear parties upon the application and objections and may order such enquiry as he thinks fit, and shall thereafter make or refuse to make the order applied for, and may award expenses against the unsuccessful party.

(4) An order made under this section by the sheriff in respect of any club shall expire on the date on which the certificate of registration which is in force in respect of the club expires.

(5) In this section the expression "the winter period" means the period beginning with the first day of October and ending with the thirty-first day of March.

6.—(1) This section shall apply to any premises for which a certificate (other than an off-sale certificate) is held or to the premises of a registered club—

- (a) if the holder of the certificate or, as the case may be, the club gives notice of the application of the section to the premises in accordance with the provisions of subsection (6) of this section, and

Extension of permitted hours in the afternoon in certain licensed premises and clubs.

(b) as from such date as may be specified in the said notice :

Provided that, in the case of premises for which a hotel or a public house certificate is held or the premises of a club, the certificate-holder or the club, as the case may be, shall not give notice of application as aforesaid, and this section shall not apply to such premises, unless the licensing court for the licensing area within which the premises are situated are satisfied that the premises are structurally adapted and bona fide used, or intended to be used, for the purpose of habitually providing the customary main meal at midday for the accommodation of persons frequenting the premises.

(2) While this section applies to any premises the effect shall be that, for the purposes mentioned in the next following subsection, on weekdays the permitted hours in those premises in the afternoon, as fixed by section four or, as the case may be, section five of this Act, shall be increased by the addition of half an hour at the end thereof.

(3) The purposes referred to in the last foregoing subsection are—

(a) the sale or supply to persons taking table meals in the premises of exciseable liquor supplied in a part of the premises usually set apart for the service of such persons, and supplied for consumption by such a person in that part of the premises as an ancillary to his meal ; and

(b) the consumption of exciseable liquor so supplied.

(4) While this section applies to any premises, then for purposes other than those mentioned in the last foregoing subsection, or in parts of the premises other than the part so mentioned, the permitted hours shall be the same as if this section did not apply to the premises.

(5) This section shall cease to apply to any premises on the expiry of the twenty-seventh day of May in any year if the holder of the certificate or the club, as the case may be, gives notice of the disapplication of the section from the premises in accordance with the provisions of the next following subsection :

Provided that this section shall cease to apply to premises for which a hotel or a public house certificate is held, or to the premises of a club, at any time on the licensing court ceasing to be satisfied as mentioned in the proviso to subsection (1) of this section.

(6) A notice of the application of this section to, or of the disapplication of this section from, any premises—

(a) shall be in writing ;

(b) shall, in the case of a club, be given by the secretary of the club on its behalf ;

- (c) shall, in the case of a notice of application, specify the date from which the section is to apply to the premises and, in the case of a notice of disapplication, state that the section is to cease to apply to the premises on the expiry of the twenty-seventh day of May next following the giving of the notice ;
- (d) shall be served on the chief constable not later than fourteen days before the date specified as aforesaid, or not later than fourteen days before the twenty-seventh day of May, as the case may be.

(7) The secretary of any club to the premises of which this section applies shall notify the licensing court for the licensing area within which such premises are situated of any reconstruction or extension of, or alteration in, the premises which affects the facilities available in the premises for the provision of the customary main meal at midday, and if the secretary of any club contravenes this subsection he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding twenty pounds.

(8) The holder of the certificate for premises to which this section applies shall keep posted in some conspicuous place in the premises a notice stating that this section applies thereto and setting out the effect of its application, and if any person contravenes this subsection he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding ten pounds.

7.—(1) For section one hundred and twenty-six of the principal Act (which provides for the extension of the permitted hours in the evening in certain licensed premises and clubs) there shall be substituted the following section:—

“Extension of permitted hours in the evening in certain licensed premises and clubs. 126.—(1) This section shall apply to any premises for which a certificate (other than an off-sale certificate) is held or to the premises of a registered club—

Extension of permitted hours in the evening in certain licensed premises and clubs.

- (a) if the holder of the certificate or, as the case may be, the club gives notice of the application of the section to the premises in accordance with the provisions of subsection (6) of this section, and

- (b) as from such date as may be specified in the said notice :

Provided that, in the case of premises for which a hotel or a public house certificate is held or the premises of a club, the certificate-holder or the club, as the case may be, shall not give notice of application as aforesaid, and this section shall not apply to such premises. unless the licensing

court for the licensing area within which the premises are situated are satisfied that the premises are structurally adapted and bona fide used, or intended to be used, for the purpose of habitually providing, for the accommodation of persons frequenting the premises, substantial refreshment to which the sale and supply of exciseable liquor is ancillary.

(2) While this section applies to any premises the effect shall be that for the purposes mentioned in the next following subsection the permitted hours in those premises in the evening, as fixed by section four or section five or, as the case may be, eight of the *Licensing (Scotland) Act, 1962*, shall be increased by the addition of one hour at the end thereof.

(3) The purposes referred to in the last foregoing subsection are—

(a) the sale or supply to persons taking table meals in the premises of exciseable liquor supplied in a part of the premises usually set apart for the service of such persons, and supplied for consumption by such a person in that part of the premises as an ancillary to his meal ; and

(b) the consumption of exciseable liquor so supplied.

(4) While this section applies to any premises, then for purposes other than those mentioned in the last foregoing subsection, or in parts of the premises other than the part so mentioned, the permitted hours shall be the same as if this section did not apply to the premises.

(5) This section shall cease to apply to any premises on the expiry of the twenty-seventh day of May in any year if the holder of the certificate or the club, as the case may be, gives notice of the disapplication of the section from the premises in accordance with the provisions of the next following subsection :

Provided that this section shall cease to apply to premises for which a hotel or a public house certificate is held, or to the premises of a club, at any time on the licensing court ceasing to be satisfied as mentioned in the proviso to subsection (1) of this section.

(6) A notice of the application of this section to, or of the disapplication of this section from, any premises—

(a) shall be in writing ;

(b) shall, in the case of a club, be given by the secretary of the club on its behalf ;

(c) shall, in the case of a notice of application, specify the date from which the section is to apply to the

premises and, in the case of a notice of disapplication, state that the section is to cease to apply to the premises on the expiry of the twenty-seventh day of May next following the giving of the notice ;

- (d) shall be served on the chief constable not later than fourteen days before the date specified as aforesaid, or not later than fourteen days before the twenty-seventh day of May, as the case may be.

(7) The secretary of any club to the premises of which this section applies shall notify the licensing court for the licensing area within which such premises are situated of any reconstruction or extension of, or alteration in, the premises which affects the facilities available in the premises for the provision of substantial refreshment, and if the secretary of any club contravenes this subsection he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding twenty pounds.

(8) The holder of the certificate for premises to which this section applies shall keep posted in some conspicuous place in the premises a notice stating that this section applies thereto and setting out the effect of its application, and if any person contravenes this subsection he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding ten pounds."

(2) Nothing in this section shall affect anything done under section one hundred and twenty-six of the principal Act before the date on which this section comes into force, but anything so done shall, if in force immediately before the said date, have effect as if it had been done under the said section one hundred and twenty-six as set out in the preceding subsection.

8.—(1) This section shall apply to any premises for which a public house certificate is held—

- (a) if the holder of the certificate gives notice of the application of the section to the premises in accordance with the provisions of subsection (6) of this section, and
 (b) as from such date as may be specified in the said notice:

Restaurants in public houses may have permitted hours on Sundays in certain cases.

Provided that a certificate-holder shall not give notice of application as aforesaid, and this section shall not apply to the premises for which he holds his certificate, unless—

- (i) the licensing court for the licensing area within which the premises are situated are satisfied that the premises are structurally adapted and bona fide used, or intended to be used, for the purpose of habitually providing the customary main meal at midday or in the evening, or both, for the accommodation of persons frequenting the premises, and that the part of the

premises mentioned in subsection (3) of this section does not contain a bar counter ; and

- (ii) in the case of premises situated in a new town as defined in section eighty of the principal Act, the committee constituted under section seventy-four of that Act for the new town have notified the certificate-holder that they have no objection to the application of this section to the premises.

(2) While this section applies to any premises the effect shall be that for the purposes mentioned in the next following subsection there shall be permitted hours in those premises on Sundays, such permitted hours being the period between half-past twelve and half-past two in the afternoon and the period between half-past six and ten in the evening.

(3) The purposes referred to in the last foregoing subsection are—

- (a) the sale or supply to persons taking table meals in the premises of exciseable liquor supplied in a part of the premises usually set apart for the service of such persons, and supplied for consumption by such a person in that part of the premises as an ancillary to his meal ; and

- (b) the consumption of exciseable liquor so supplied.

(4) While this section applies to any premises, then for purposes other than those mentioned in the last foregoing subsection, or in parts of the premises other than the part so mentioned, there shall be no permitted hours on Sundays.

(5) This section shall cease to apply to any premises on the expiry of the twenty-seventh day of May in any year if the holder of the certificate gives notice of the disapplication of the section from the premises in accordance with the provisions of the next following subsection :

Provided that this section shall cease to apply to premises at any time on the licensing court ceasing to be satisfied as mentioned in paragraph (i) of the proviso to subsection (1) of this section.

(6) A notice of the application of this section to, or of the disapplication of this section from, any premises—

- (a) shall be in writing ;

- (b) shall, in the case of a notice of application, specify the date from which the section is to apply to the premises and, in the case of a notice of disapplication, state that the section is to cease to apply to the premises on the expiry of the twenty-seventh day of May next following the giving of the notice ;

- (c) shall be served on the chief constable not later than fourteen days before the date specified as aforesaid,

or not later than fourteen days before the twenty-seventh day of May, as the case may be.

(7) The holder of the certificate for premises to which this section applies shall keep posted in some conspicuous place in the premises a notice stating that this section applies thereto and setting out the effect of its application, and if any certificate-holder contravenes this subsection he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding ten pounds.

9.—(1) For section one hundred and twenty-eight of the principal Act (which relates to six-day certificates) there shall be substituted the following section:—

“Six-day certificates 128.—(1) On granting or transferring a hotel certificate, a restaurant certificate or a restricted hotel certificate in respect of any premises a licensing court shall, if the applicant so requests, insert in the certificate a condition that there shall be no permitted hours in those premises on Sundays.

(2) A certificate in which such a condition has been inserted is in this Act referred to as a six-day certificate.”

(2) A hotel certificate subsisting at the date on which this section comes into force, being a six-day certificate, shall as from such date be deemed to contain a condition that there shall be no permitted hours in the premises of the hotel on Sundays.

10.—(1) On granting or transferring a certificate in respect of any premises a licensing court may, if the applicant so requests and if they are satisfied that the requirements of the licensing area for which they are constituted make it desirable, insert in the certificate a condition that, during such part or parts of the year as may be specified in the condition (being a part which is not longer, or parts which taken together are not longer, than one hundred and eighty days),—

- (a) in the case of premises other than off-sale premises, there shall be no permitted hours in the premises;
- (b) in the case of off-sale premises, the certificate-holder shall not open the premises for the serving of customers with exciseable liquor.

(2) A certificate in which such a condition has been inserted is in this Act referred to as a seasonal certificate.

The general licensing system

11.—(1) Premises shall be disqualified for receiving a certificate if they are situated on land acquired or appropriated by a special road authority, and for the time being used, for the provision of facilities to be used in connection with the use of a special roads.

Certificate not to be granted for premises on special roads.

special road provided for the use of traffic of class I (with or without other classes).

(2) For the purposes of this section—

- (a) “special road” and “special road authority” have the same meanings respectively as in the Special Roads Act, 1949 ; and
- (b) “class I” means class I in the Second Schedule to that Act, as varied from time to time by any order under section two of the Act, but if that Schedule is amended by such an order so as to add to it a further class of traffic, the order may adapt the reference in this section to traffic of class I so as to take account of the additional class.

Amendment
of law
relating to
provisional
grant of
certificates.

12.—(1) If on an application under section fifty-four of the principal Act for the provisional grant of a certificate in respect of any premises the applicant lodges with the licensing court, instead of the plan of the premises referred to in section forty-two of that Act, a plan sufficient to identify the site of the premises, together with such description of the premises as will give a general indication of their proposed size and character (with reference in particular to the sale of exciseable liquor), then—

- (a) the licensing court shall deal with the application as if the site plan and description lodged as aforesaid were a plan lodged in pursuance of the said section forty-two, and shall assume that the premises will be fit and convenient for their purpose ; but
- (b) any provisional grant of a certificate made on such application shall become ineffective unless affirmed under subsection (3) of this section by the licensing court.

(2) Where a licensing court make a provisional grant of a certificate by virtue of the foregoing subsection, the holder of such certificate may—

- (a) in the case of a grant which requires confirmation by the court of appeal, within the period of twelve months immediately following the date on which the grant is confirmed ;
- (b) in the case of a grant which does not require confirmation, within the period of twelve months immediately following the date of the grant or, where there is an appeal, the date the appeal is disposed of ;

apply to the court for the grant to be affirmed and in making such application shall lodge with the court a plan of the premises in respect of which the said provisional grant was made.

(3) A licensing court may consider any application made to them under the last foregoing subsection at any meeting of the

court held not earlier than fourteen days after the making of the application and shall affirm the provisional grant if they are satisfied that the premises, if completed in accordance with the plan thereof lodged with the court as aforesaid, will be fit and convenient for their purpose and that the said plan does not deviate materially from the site plan and description of the premises lodged under subsection (1) of this section.

(4) A licensing court shall declare final a provisional grant of a certificate notwithstanding that they are not satisfied that the premises in respect of which the grant was made have been completed in accordance with the plan thereof lodged with the court in pursuance of section forty-two of the principal Act or, as the case may be, subsection (2) of this section, if they are satisfied that the premises have been completed and that the deviations from the said plan are of minor importance and have not materially altered the character of the premises or the facilities for the supply of exciseable liquor thereat.

(5) Section fifty-four of the principal Act, together with the foregoing provisions of this section, shall apply for the purpose of the provisional grant of off-sale certificates as they apply for the purpose of the provisional grant of hotel and public house certificates.

(6) Subsection (4) of this section shall, with any necessary modifications, apply in relation to the grant of a provisional licence in respect of a seamen's canteen under Part II of the Sixth Schedule to the principal Act.

13.—(1) Section sixty-one of the principal Act (under which the consent of the licensing court is required for any reconstruction of or alteration in certain licensed premises or the premises of a licensed canteen) shall apply, and be deemed always to have applied, in relation to an extension of premises as it applies in relation to a reconstruction of or alteration in premises.

Amendment of law relating to control by licensing courts over structure of licensed premises.

(2) The consent of the licensing court under the said section sixty-one—

(a) shall be required only if the proposed reconstruction, alteration or extension will affect a public or common part of the premises in question or any communication with such a part;

(b) shall not be given to any reconstruction, alteration or extension which will materially alter the character of the premises in question.

(3) For the purposes of the last foregoing subsection—

(a) "public part" means a part open to customers who are not residents or guests of residents; and

(b) "common part" means a part open generally to all residents or to a particular class of them.

Provisions regulating sale and supply of exciseable liquor

Protection of young persons. 14.—(1) Subject to the provisions of section sixteen of this Act, in licensed premises the holder of the certificate or his servant or agent shall not knowingly sell exciseable liquor to a person under eighteen, or knowingly allow a person under eighteen to consume exciseable liquor in a bar, nor shall the holder of the certificate knowingly allow any person to sell exciseable liquor to a person under eighteen.

(2) A person under eighteen shall not in licensed premises buy or attempt to buy exciseable liquor, nor consume exciseable liquor in a bar.

(3) A person shall not knowingly act as agent for a person under eighteen in the purchase of exciseable liquor, nor shall any person buy or attempt to buy exciseable liquor for consumption in a bar in licensed premises by a person under eighteen.

(4) In the foregoing subsections and in sections one hundred and forty-three and one hundred and forty-four of the principal Act (which contain other provisions for the protection of children and young persons), references to a bar shall not apply to a bar at any time when it is, as is usual in the premises in question, set apart for the service of table meals and not used for the sale or supply of exciseable liquor otherwise than to persons having table meals there and for consumption by such a person as an ancillary to his meal; and nothing in subsection (1) or (2) of this section shall prohibit the sale to or purchase by a person who has attained the age of sixteen of beer, porter, cider or perry for consumption at a meal in a part of the premises usually set apart for the service of meals which is not a bar, or in a bar at any such time as aforesaid, and nothing in subsection (3) of this section shall prohibit the acting by any person as agent for a person who has attained the age of sixteen in the purchase of beer, porter, cider or perry for consumption as aforesaid.

(5) The holder of the certificate or his servant or agent shall not knowingly deliver, nor shall the holder of the certificate knowingly allow any person to deliver, to a person under eighteen exciseable liquor sold in licensed premises for consumption off the premises, except where the delivery is made at the residence or working place of the purchaser, nor shall any person knowingly send a person under eighteen for the purpose of obtaining exciseable liquor sold or to be sold as aforesaid from the licensed premises or other premises from which the liquor is delivered in pursuance of the sale:

Provided that this subsection shall not apply where the person under eighteen is a member of the certificate-holder's family or

his servant or apprentice and is employed as a messenger to deliver exciseable liquor.

(6) Subsections (1) to (3) of this section (but not subsection (4)) shall apply in relation to any licensed canteen as if the canteen were licensed premises, but with the substitution for any reference to a bar of a reference to the canteen.

(7) If any person contravenes this section (other than subsection (2) thereof), then—

- (a) if he holds a certificate in respect of the premises where the exciseable liquor in respect of which such contravention took place was sold or consumed, he shall be deemed to be guilty of a breach of such certificate and shall be liable accordingly ;
- (b) in any other case, he shall be guilty of an offence and on conviction thereof shall be liable, in the case of a first conviction to a fine not exceeding twenty-five pounds, and in the case of a second or subsequent conviction to a fine not exceeding fifty pounds ;

and if any person contravenes subsection (2) of this section he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding twenty pounds.

(8) Sections one hundred and forty-five and one hundred and forty-six of the principal Act (which contain provisions for the protection of children and young persons) and condition (5) in each of the forms of certificate set out in the Second Schedule to that Act (which condition restricts the sale and supply of exciseable liquor to children) shall cease to have effect.

15. Section one hundred and fifty of the principal Act (which restricts the sale of exciseable liquor on credit) shall not apply to the sale, supply or consumption of exciseable liquor in any premises if the liquor is sold or supplied in those premises for consumption by a person residing in the premises or by a private friend of such a person who is bona fide entertained by, and at the expense of, that person, and if it is paid for with that person's accommodation. Amendment of law relating to sale of exciseable liquor on credit.

16.—(1) No provision of the principal Act or this Act as to the sale, supply, purchase, delivery or consumption of exciseable liquor, except subsection (2) of this section, and no enactment requiring the authority of an excise licence for the sale or supply of exciseable liquor shall have effect in relation to exciseable liquor in confectionery which— Liqueur chocolates.

- (a) does not contain exciseable liquor in a proportion greater than one fiftieth of a gallon of liquor (computed as proof spirit) per pound of the confectionery ; and

- (b) either consists of separate pieces weighing not more than one and a half ounces or is designed to be broken into such pieces for the purpose of consumption.

(2) Exciseable liquor in confectionery shall not be sold to a person under sixteen, and if any person knowingly contravenes this subsection he shall be guilty of an offence and on conviction thereof shall be liable, in the case of a first conviction to a fine not exceeding ten pounds, and in the case of a second or subsequent conviction to a fine not exceeding twenty-five pounds.

Clubs

Sale of exciseable liquor in registered clubs to members of other clubs.

17.—(1) Notwithstanding anything in the principal Act, the rules of a registered club may provide for the admission to the premises of the club of persons who are members of another club, and for the sale and supply of exciseable liquor to such persons by or on behalf of the club for consumption on the premises, if—

- (a) the other club is a registered club whose premises are in the locality and are temporarily closed ; or
- (b) both clubs exist for learned, educational or political objects of a similar nature ; or
- (c) each of the clubs is primarily a club for persons who are qualified by service or past service, or by any particular service or past service, in Her Majesty's Forces and are members of an organisation established by Royal Charter, and consists wholly or mainly of such persons ; or
- (d) each of the clubs is primarily a club for persons who carry on the same trade, profession or occupation, and that trade, profession or occupation is the same in the case of either club ; or
- (e) each of the clubs is a working men's club (that is to say, a club which is, as regards its purposes, qualified for registration as a working men's club under the Friendly Societies Act, 1896, and is a registered society within the meaning of that Act or of the Industrial and Provident Societies Act, 1893).

(2) Notwithstanding anything in any enactment, the authority of a certificate or licence shall not be required for such a sale of exciseable liquor as is mentioned in the foregoing subsection and, where the rules of a club provide as aforesaid, exciseable liquor may be supplied in the premises of the club to such persons as are mentioned in that subsection and their guests for consumption on the premises as it may to members of the club and their guests.

18.—(1) The secretary of a registered club may, if it is intended that any special activity arising out of or related to the functions of the club shall take place in the premises thereof, apply for a special permission to any two members of the licensing court within whose jurisdiction those premises are situated, and such members may, if they are satisfied that the premises possess the necessary accommodation and if they otherwise think fit, grant the special permission applied for. Special permissions for clubs.

(2) Subject to the provisions of the following subsection, a special permission granted under this section to any club shall authorise the sale or supply, for the purpose of the special activity in question, of exciseable liquor in the premises of the club in accordance with the rules of the club during such period, and between such hours, as may be specified in the permission; and nothing in section one hundred and twenty-one of the principal Act shall prohibit the sale or supply of exciseable liquor in accordance with a special permission granted as aforesaid.

(3) The provisions of subsections (2), (4), (6), (7) and (8) of section sixty of the principal Act (which relates to the grant of a special permission to the holder of a hotel or a public house certificate) shall, subject to any necessary modifications, apply for the purposes of this section as they apply for the purposes of the said section sixty.

19.—(1) A person under eighteen shall not be employed in a registered club if the purpose, or one of the purposes, of his employment is to serve exciseable liquor to persons in that club. Persons under 18 not to be employed to serve exciseable liquor in clubs.

(2) If this section is contravened as regards any club, every person entered in the register of clubs as an official or member of the committee of management or governing body of that club shall be guilty of an offence and on conviction thereof shall be liable, in the case of a first conviction, to a fine not exceeding five pounds, and in the case of a second or subsequent conviction, to a fine not exceeding twenty pounds:

Provided that a person shall not be convicted of an offence under this section if he proves that the contravention in question took place without his knowledge or consent.

(3) For the purposes of this section a person shall be deemed to be employed in a club where he works notwithstanding that he receives no wages for his work.

(4) Where in any proceedings under this section it is alleged that a person was at any time under eighteen, and he appears to the court then to have been under that age, for the purposes of the proceedings he shall be deemed to have been then under that age unless the contrary is shown.

(5) A conviction for any offence shall not after five years from the date of the conviction be receivable in evidence against any person for the purpose of subjecting him under this section to an increased fine.

Miscellaneous

Trading hours
for off-sale
premises, etc.

20.—(1) Off-sale premises shall not be opened for the serving of customers with exciseable liquor earlier than eight o'clock in the morning, and shall be closed for the serving of customers with such liquor not later than ten o'clock in the evening, on weekdays; and such premises shall not be opened for the serving of customers with such liquor on Sundays.

(2) Where by virtue of subsection (2) of section three of this Act a licensing court inserts such conditions as are mentioned in that subsection in a hotel or a public house certificate held in respect of any premises, the provisions of the foregoing subsection shall apply to the off-sale part (as defined in the said subsection (2)) of those premises as they apply to off-sale premises.

(3) In the case of any contravention of this section as regards any licensed premises, the holder of the certificate in respect of those premises shall be deemed to be guilty of a breach of that certificate and shall be liable accordingly.

Sale of
exciseable
liquor on
passenger
vessels on
Sundays.

21.—(1) Subsection (3) of section one hundred and fifty-three of the Customs and Excise Act, 1952 (which provides as regards Scotland that an excise licence for the sale of exciseable liquor granted in respect of any passenger vessel may be endorsed with a condition that no exciseable liquor shall be supplied during voyages on Sundays), shall cease to have effect, but no person shall, except during the period between half-past twelve and half-past two in the afternoon or the period between half-past six and ten in the evening, himself, or by his servant or agent, sell or supply exciseable liquor on a passenger vessel during any voyage commencing on a Sunday and terminating on the same day, being—

(a) a voyage between any two places in Scotland; or

(b) a voyage in a vessel going from and returning on the same day to the same place in Scotland.

(2) If any person contravenes this section he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding one hundred pounds.

(3) In this section the expression "passenger vessel" has the same meaning as in section one hundred and fifty-three of the Customs and Excise Act, 1952.

Restriction
on carriage
of exciseable
liquor in
crates, etc.,
on contract
carriages.

22.—(1) If the holder of a public service vehicle licence in respect of any vehicle, either himself or by his servant or agent, or if the servant or agent of such holder, permits any exciseable liquor to be carried on the said vehicle in such a container or other device as is mentioned in subsection (5) of this section at any time when that vehicle is being used as a contract carriage, he shall be guilty of an offence.

(2) If any person procures or attempts to procure a contravention of the foregoing subsection he shall be guilty of an offence.

(3) Any person guilty of an offence under this section shall on conviction thereof be liable—

(a) if he is the holder of a public service vehicle licence in respect of the vehicle on which the exciseable liquor in question was carried, in the case of a first conviction to a fine not exceeding twenty-five pounds, and in the case of a second or subsequent conviction to a fine not exceeding fifty pounds;

(b) in any other case to a fine not exceeding ten pounds.

(4) Where the holder of a public service vehicle licence is charged with an offence under this section by reason only of a contravention of subsection (1) thereof committed by any servant or agent of his, it shall be a defence for him to prove that the contravention took place without his consent or connivance and that he exercised all due diligence to prevent it.

(5) This section applies to any container or other device (including a container or device fixed to, or forming part of, a vehicle) constructed or adapted for the purpose of holding two or more bottles or cans or of holding liquid in excess of six pints.

(6) In this section “public service vehicle licence” and “contract carriage” have the like meanings as in Part III of the Road Traffic Act, 1960.

23. Subsection (6) of section one hundred and thirty-one, and subsection (2) of section one hundred and thirty-three, of the principal Act (which provide that a contravention of any of the conditions contained in a certificate, and the offence of trafficking in exciseable liquor without a certificate or licence, respectively, may be proved by the evidence of one witness) are hereby repealed. Repeal of ss. 131 (6) and 133 (2) of principal Act.

24. Section one hundred and fifty-one of the principal Act (under which it is an offence for any person to attempt to enter a public house while in a state of intoxication) shall apply also to a person attempting to enter any licensed premises (not being premises where he is residing), and any person who after the coming into force of this section contravenes the said section one hundred and fifty-one shall be liable to a fine not exceeding ten pounds (instead of the fine not exceeding forty shillings provided for in that section). Amendment of s. 151 of principal Act.

Supplementary

Interpretation,
and application
of certain
provisions of
principal Act
for purposes
of this Act.

25.—(1) In this Act the expression “the principal Act” means the Licensing (Scotland) Act, 1959, and in the principal Act and this Act the following expressions shall, unless the context otherwise requires, have the meanings hereby respectively assigned to them:—

“off-sale premises” means premises in respect of which an off-sale certificate has been granted and is in force;

“restaurant certificate” has the meaning assigned to it by subsection (2) of section one of this Act;

“restricted hotel certificate” has the meaning assigned to it by subsection (3) of section one of this Act;

“seasonal certificate” has the meaning assigned to it by section ten of this Act;

“table meal” means a meal eaten by a person sitting at a table, or at a counter or other structure which serves the purpose of a table and is not used for the service of refreshments for consumption by persons not seated at a table or structure serving the purpose of a table.

(2) References in this Act to a bar counter in any premises shall not include references to a counter in such premises which is bona fide used, or intended to be used,—

(a) as a place at which meals are served to persons sitting thereat and at which exciseable liquor is supplied to persons taking such meals for consumption by such a person while seated at such counter and as an ancillary to his meal; or

(b) as a place at which exciseable liquor is dispensed to the holder of a certificate in respect of the premises or any servant or agent of his, but to no other person, and is so dispensed in order that it may be supplied to persons frequenting the premises; or

(c) for both of the purposes mentioned in the two foregoing paragraphs;

and for no other purpose.

(3) For the purposes of the principal Act and this Act a person shall be treated as residing in any premises, notwithstanding that he occupies sleeping accommodation in a separate building, if he is provided with that accommodation in the course of a business of providing board and lodging for reward at those premises and the building is habitually used for the purpose by way of annex or overflow in connection with those premises and is occupied and managed with those premises

(4) The following provisions of the principal Act shall apply for the purposes of this Act as they apply for the purposes of the principal Act—

section ten (disqualification of interested persons for acting as members of licensing courts or courts of appeal);

section twenty-seven (citation and examination of witnesses before licensing courts);

section twenty-nine (fees payable to clerks of court);

section thirty (clerks to licensing courts, etc., not to act professionally in licensing matters);

sections one hundred and eighty-nine to one hundred and ninety-one and section one hundred and ninety-four (provisions regarding prosecution of offences and appeals);

section one hundred and ninety-five (limitation of actions against sheriffs, etc.);

section one hundred and ninety-six (service of notices, etc.);

section one hundred and ninety-eight (exemptions and savings);

section one hundred and ninety-nine (interpretation).

26.—(1) The principal Act shall have effect subject to the amendments specified in the Second Schedule to this Act, being minor amendments or amendments designed to give effect to, or consequential on, the provisions of this Act.

Amendments
and repeals,
and
transitional
provisions
consequential
thereon.

(2) The enactments mentioned in the Third Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(3) Any certificate granted by a licensing court, being a certificate which is subsisting at the date on which this section comes into force, shall as from such date have effect as if it had been so granted in the appropriate form set out in the Second Schedule to the principal Act as amended by paragraph 36 of the Second Schedule to this Act.

27.—(1) This Act may be cited as the Licensing (Scotland) Act, 1962, and the principal Act and this Act may be cited together as the Licensing (Scotland) Acts, 1959 and 1962.

Citation,
extent and
commence-
ment.

(2) This Act shall extend to Scotland only.

(3) This Act shall come into force on such day as the Secretary of State may appoint by order made by statutory instrument, and different days may be appointed for different provisions of this Act or for different purposes of the same provision.

SCHEDULES

FIRST SCHEDULE

Sections 1 and 2.

NEW FORMS OF CERTIFICATE

Form of certificate for restaurant

The licensing court for the county [or licensing district or burgh, as the case may be,] of _____ at their general half-yearly meeting held at _____ on the _____ day of _____, nineteen hundred and _____, did authorise and empower A.B. (hereinafter referred to as "the certificate-holder"), residing at _____, to keep a restaurant at _____, in the parish of _____ and county [or licensing district or burgh] aforesaid, and to sell by retail, under the appropriate excise licence, in the premises of the said restaurant but not elsewhere, victuals, spirits, wine, porter, ale, beer, cider, perry and any other exciseable liquor [or victuals, wine, porter, ale, beer, cider and perry, or victuals, porter, ale, beer, cider and perry], and the certificate-holder is accordingly authorised and empowered to sell such victuals and exciseable liquor on the following conditions :—

- (1) the certificate-holder shall not fraudulently adulterate the victuals or exciseable liquor sold by him, or sell the same knowing them to have been fraudulently adulterated ;
- (2) the certificate-holder shall not, either by himself or by any servant or agent, sell or supply any exciseable liquor for consumption on the premises except to persons taking table meals in the said premises, for consumption by such a person as an ancillary to his meal ;
- (3) the certificate-holder shall not, either by himself or by any servant or agent, traffic in or supply any exciseable liquor for consumption off the premises ;
- (4) the certificate-holder shall not, except during the permitted hours, either by himself or by any servant or agent sell or supply any exciseable liquor to any person save as allowed by law ;
- (5) the certificate-holder shall not sell or supply any exciseable liquor to persons who are in a state of intoxication ;
- (6) the certificate-holder shall not contravene any of the conditions of a special permission granted to him under section sixty of the Licensing (Scotland) Act, 1959 ;
- (7) the certificate-holder shall ensure that drinking water and other suitable beverages other than exciseable liquor shall be equally available for consumption with, or otherwise as an ancillary to, meals served in the premises ;
- (8) the certificate-holder shall maintain good order in the premises ;
- (9) the certificate-holder shall not knowingly permit any breach of the peace, drunkenness or riotous or disorderly conduct in the premises ;
- (10) the certificate-holder shall not knowingly permit men or women of notoriously bad fame to assemble in the premises ;

(11) the certificate-holder shall not permit the playing of any game in the premises in such circumstances that an offence under Part II of the Betting and Gaming Act, 1960, is committed ;

1st Sch.

(12) the certificate-holder shall not himself be in a state of intoxication in the premises.

This certificate shall have effect on the conditions aforesaid from the _____ day of _____ nineteen hundred and _____, until the twenty-seventh day of May, nineteen hundred and _____, both days inclusive.

The above certificate is made out according to the deliverance in the register appointed to be kept in terms of section thirty-eight of the Licensing (Scotland) Act, 1959.

C.D.

Clerk.

Form of restricted hotel certificate

The licensing court for the county [*or* licensing district *or* burgh, *as the case may be,*] of _____, at their general half-yearly meeting held at _____ on the _____ day of _____, nineteen hundred and _____, did authorise and empower A.B. (hereinafter referred to as "the certificate-holder"), residing at _____, to keep a hotel at _____, in the parish of _____ and county [*or* licensing district *or* burgh] aforesaid, and to sell by retail, under the appropriate excise licence, in the premises of the said hotel but not elsewhere, victuals, spirits, wine, porter, ale, beer, cider, perry and any other exciseable liquor [*or* victuals, wine, porter ale, beer, cider and perry, *or* victuals, porter, ale, beer, cider and perry], and the certificate-holder is accordingly authorised and empowered to sell such victuals and exciseable liquor on the following conditions :—

- (1) the certificate-holder shall not fraudulently adulterate the victuals or exciseable liquor sold by him, or sell the same knowing them to have been fraudulently adulterated ;
- (2) the certificate-holder shall not, either by himself or by any servant or agent, sell or supply any exciseable liquor for consumption on the premises except as follows, that is to say—
 - (a) the certificate-holder may sell or supply such liquor to persons taking table meals in the said premises, for consumption by such a person as an ancillary to his meal ;
 - (b) the certificate-holder may sell or supply such liquor to persons residing in the premises, for consumption by such a person or by a private friend of such a person who is bona fide entertained by, and at the expense of, that person ;

1ST SCH.

(c) the certificate-holder may supply such liquor to any private friends of a person residing in the premises who are bona fide entertained by, and at the expense of, that person, for consumption by such a friend entertained as aforesaid ;

- (3) the certificate-holder shall not, either by himself or by any servant or agent, traffic in or supply any exciseable liquor for consumption off the premises except to persons residing in the premises, for consumption by such a person or by a private friend of such a person who is bona fide entertained by, and at the expense of, that person as an ancillary to a meal supplied at, but to be consumed off, the premises ;
- (4) the certificate-holder shall not, except during the permitted hours, either by himself or by any servant or agent sell or supply any exciseable liquor to any person save as allowed by law ;
- (5) the certificate-holder shall not sell or supply any exciseable liquor to persons who are in a state of intoxication ;
- (6) the certificate-holder shall not contravene any of the conditions of a special permission granted to him under section sixty of the Licensing (Scotland) Act, 1959 ;
- (7) the certificate-holder shall ensure that drinking water and other suitable beverages other than exciseable liquor shall be equally available for consumption with, or otherwise as an ancillary to, meals served in the premises ;
- (8) the certificate-holder shall maintain good order in the premises ;
- (9) the certificate-holder shall not knowingly permit any breach of the peace, drunkenness or riotous or disorderly conduct in the premises ;
- (10) the certificate-holder shall not knowingly permit men or women of notoriously bad fame to assemble in the premises ;
- (11) the certificate-holder shall not permit the playing of any game in the premises in such circumstances that an offence under Part II of the Betting and Gaming Act, 1960, is committed ;
- (12) the certificate-holder shall not himself be in a state of intoxication in the premises.

This certificate shall have effect on the conditions aforesaid from the day of , nineteen hundred and , until the twenty-seventh day of May, nineteen hundred and , both days inclusive.

The above certificate is made out according to the deliverance in the register appointed to be kept in terms of section thirty-eight of the Licensing (Scotland) Act, 1959.

C.D.
Clerk.

SECOND SCHEDULE

Section 26.

AMENDMENTS OF THE PRINCIPAL ACT

1. In section ten (which provides for the disqualification of interested persons for acting as members of licensing courts or courts of appeal), at the end of subsection (1) there shall be inserted the words "or under the Licensing (Scotland) Act, 1962".

2. In section twenty-seven (which relates to the citation and examination of witnesses before licensing courts), in subsection (1), after the word "Act" there shall be inserted the words "or under the Licensing (Scotland) Act, 1962".

3. In section twenty-nine (which relates to the fees payable to clerks of court)—

(a) in subsection (1), after the word "Act", where first occurring, there shall be inserted the words "or under the Licensing (Scotland) Act, 1962";

(b) in subsection (2), for the words "done under this Act" there shall be substituted the words "done as aforesaid".

4. In section thirty (which provides that clerks to licensing courts and certain other officials are not to act professionally in licensing matters)—

(a) in subsection (1), after the word "Act" there shall be inserted the words "or under the Licensing (Scotland) Act, 1962";

(b) in subsection (2), after the word "Act", where first occurring, there shall be inserted the words "or under the Licensing (Scotland) Act, 1962";

(c) in subsection (3), after the word "Act", in the second and third places where it occurs, there shall be inserted the words "or under the Licensing (Scotland) Act, 1962".

5. In section thirty-two (which relates to the grant of certificates by licensing courts)—

(a) in subsection (1), after the word "Act" there shall be inserted the words "and of the Licensing (Scotland) Act, 1962";

(b) in subsection (3), after the word "Act", where first occurring, there shall be inserted the words "and of the Licensing (Scotland) Act, 1962", and at the end there shall be inserted the words "or, as the case may be, in the First Schedule to the said Act of 1962";

(c) in subsection (4), after the word "Act" there shall be inserted the words "or of the Licensing (Scotland) Act, 1962".

6. In section forty-two (which obliges an applicant for a new hotel or public house certificate to lodge a plan of the premises with the licensing court), for the words "being a hotel certificate or a public house certificate" there shall be substituted the words "(other than an off-sale certificate)".

2ND SCH.

7. In section forty-four (which provides that the grant of a new certificate by a licensing court shall not be valid unless confirmed by the court of appeal)—

- (a) after the words “this Act” there shall be inserted the words “and in paragraph (i) of subsection (2) of section two of the Licensing (Scotland) Act, 1962”;
- (b) for the words “shall not be valid” there shall be substituted the words “(but not the grant of a new certificate by a court of appeal on an appeal taken by virtue of paragraph (ii) of the said subsection (2)) shall be invalid”.

8. In section forty-nine (which relates to appeals from a licensing court to the court of appeal), in the proviso to subsection (1), for the words “notwithstanding anything contained in this or any other enactment” there shall be substituted the words “(except as provided in paragraph (ii) of subsection (2) of section two of the Licensing (Scotland) Act, 1962)”.

9. In section fifty-four (which provides for the provisional grant of hotel and public house certificates)—

- (a) in subsection (1), for the words “as a hotel or a public house” there shall be substituted the words “as licensed premises”, for the words “a hotel or a public house certificate” there shall be substituted the words “a certificate in the appropriate form”, and for paragraph (a) there shall be substituted the following paragraph—

“(a) that the premises will be fit and convenient for their purpose, and”;

- (b) in subsection (2), for the words “of suitable construction and accommodation for use as a hotel or, as the case may be, a public house,” there shall be substituted the words “fit and convenient for their purpose”;
- (c) in paragraph (a) of subsection (3), at the beginning there shall be inserted the word “either”, and for the words “as aforesaid” there shall be substituted the words “in pursuance of section forty-two of this Act or, as the case may be, subsection (2) of section twelve of the Licensing (Scotland) Act, 1962, or that the premises have been completed and that such deviations from the said plan as exist are of minor importance and have not materially altered the character of the premises or the facilities for the supply of exciseable liquor thereat,”;
- (d) in subsection (5), for the words from “applications” onwards there shall be substituted the words “and to the provisions of subsection (1) of section twelve of the Licensing (Scotland) Act, 1962, the provisions of this Act relating to the procedure to be followed in applications for the grant and confirmation of a new certificate shall apply also in relation to applications for the provisional grant and confirmation of a certificate, and for the purposes of this subsection section forty-two of this Act shall be deemed to apply also in relation to an application for the grant of a new off-sale certificate.”.

10. In section fifty-six (which empowers a licensing court to grant a certificate in a form other than that applied for)— 2ND SCH.

- (a) at the beginning there shall be inserted the words "Subject to the provisions of this Act and of the Licensing (Scotland) Act, 1962";
- (b) at the end there shall be inserted the words "or in the First Schedule to the Licensing (Scotland) Act, 1962."

11. In section sixty (which relates to the grant of a special permission to the holder of a hotel or a public house certificate)—

- (a) in subsection (1), for the words "a hotel certificate or a public house certificate" there shall be substituted the words "a certificate (other than an off-sale certificate)";
- (b) at the end of subsection (7) there shall be inserted the words "and—"
 - (c) a condition (if it is granted to the holder of a restaurant or a restricted hotel certificate) that the sale of exciseable liquor under the authority of the permission shall be ancillary to the provision of substantial refreshment."
- (c) in subsection (10), for the words "Sections one hundred and forty-four and one hundred and forty-six of this Act" there shall be substituted the words "Section one hundred and forty-four of this Act and subsections (1) to (4), (6) and (7) of section fourteen of the Licensing (Scotland) Act, 1962".

12. In section sixty-one (which provides that the consent of the licensing court shall be required for the reconstruction, etc., of premises in respect of which a hotel or a public house certificate is held)—

- (a) in subsection (1), after the word "reconstruction", where first occurring, there shall be inserted the words "or extension", for the words "a hotel certificate or a public house certificate" there shall be substituted the words "a certificate (other than an off-sale certificate)", after the word "canteen" there shall be inserted the words "(being a reconstruction, extension or alteration which will affect a public or common part of such premises or any communication with such a part)", and after the word "reconstruction", in the second and third places where it occurs, there shall be inserted the word "extension";
- (b) in subsection (2), after the word "court" there shall be inserted the words "shall not give their consent under this section to any reconstruction, extension or alteration which will materially alter the character of the premises in question, and", and after the word "reconstruction" there shall be inserted the word "extension";
- (c) after subsection (3), there shall be inserted the following subsection—

"(4) For the purposes of this section—

- (a) 'public part' means a part open to customers who are not residents or guests of residents; and

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(b) 'common part' means a part open generally to all residents or to a particular class of them."

13. In section sixty-two (which empowers a licensing court to order structural alterations in premises in respect of which a hotel or a public house certificate is held), in subsection (1), for the words "a certificate in respect of a hotel or a public house" there shall be substituted the words "a certificate in respect of any premises (other than off-sale premises)".

14. In section sixty-four (which empowers a licensing court to make byelaws), in paragraph (e) of subsection (1), at the end there shall be inserted the words "or under section eighteen of the Licensing (Scotland) Act, 1962 ;".

15. In section seventy-seven (which relates to the grant of new certificates, and renewals, in new towns), for paragraph (c) of subsection (4) there shall be substituted the following paragraph—

"(c) for a certificate other than a six-day certificate, where the subsisting certificate is a six-day certificate ;".

16. In section eighty-two (which restricts the sale and supply of exciseable liquor in State management districts), at the end of subsection (1) there shall be inserted the following words—

"(d) to anything done under the authority of a restaurant or a restricted hotel certificate."

17. In section eighty-nine (which relates to the restoration to full force of certificates in suspense by reason of war circumstances), in subsection (2), for the words "a hotel or a public house" there shall be substituted the words "any premises other than off-sale premises".

18. In section ninety-seven (which relates to the restoration to full force of certificates in suspense by reason of compulsory acquisition, etc.), in subsection (2), for the words "a hotel or a public house" there shall be substituted the words "any premises other than off-sale premises".

19. In section one hundred and eleven (which relates to the grant of certificates in an area where a no-licence resolution is in force)—

(a) in subsection (1), for the words from "certificates for a hotel" onwards there shall be substituted the words "restaurant or restricted hotel certificates for premises situated in the area."; and

(b) subsections (2) to (5) shall be omitted.

20. In section one hundred and sixteen (which provides that licensed premises in any area are to be closed on the day of a temperance poll in that area), paragraph (b) of subsection (2) shall be omitted.

21. In section one hundred and twenty-one (which restricts the sale and supply of exciseable liquor in licensed premises and clubs except during the permitted hours), at the end of subsection (1) there shall be inserted the following proviso—

"Provided that this subsection shall not apply to off-sale premises nor, where by virtue of subsection (2) of section three

of the Licensing (Scotland) Act, 1962, a licensing court has inserted such conditions as are mentioned in that subsection in a hotel or a public house certificate held in respect of any premises, to the off-sale part (as defined in the said subsection (2)) of those premises.”.

22. In section one hundred and twenty-nine (which contains supplemental provisions relating to the permitted hours)—

(a) in subsection (1), for the words “the foregoing provisions of this Part of this Act (other than section one hundred and twenty-five of this Act)” there shall be substituted the words “section one hundred and twenty-six of this Act and sections six and eight of the Licensing (Scotland) Act, 1962”, and for the words from “at their general half-yearly meeting in March” to the end of the subsection there shall be substituted the words “at any meeting of such court.”;

(b) subsections (2) and (3) shall be omitted.

23. In section one hundred and fifty (which restricts sales of excisable liquor on credit), for the proviso to subsection (1) there shall be substituted the following proviso—

“Provided that an offence shall not be committed under this section if—

(a) the liquor is sold or supplied for consumption at a meal supplied at the same time and is consumed with the meal, and the liquor is paid for with the meal, or

(b) the liquor is sold or supplied for consumption by a person residing in the premises or by a private friend of such a person who is bona fide entertained by, and at the expense of, that person, and if it is paid for with that person’s accommodation.”

24. In section one hundred and fifty-one (which provides that any person attempting to enter a public house while in a state of intoxication shall be liable to a fine not exceeding forty shillings), in subsection (1)—

(a) for the words “a public house” there shall be substituted the words “any licensed premises (not being premises where he is residing)”;

(b) for the words “forty shillings” there shall be substituted the words “ten pounds”.

25. In section one hundred and seventy-three (which provides that a club shall not be registered unless the rules of the club make provision for certain matters, including the fixing of the permitted hours applicable to the club)—

(a) paragraph (j) shall be omitted;

(b) in the proviso, the words “other than paragraph (j) thereof” shall be omitted.

26. In section one hundred and seventy-nine (which confers on the police certain powers of entry under warrant into registered

2ND SCH. clubs), in paragraph (b) of subsection (1), after the word "Act" there shall be inserted the words "or the Licensing (Scotland) Act, 1962".

27. In section one hundred and eighty-four (which confers on the police power to enter licensed premises and licensed canteens), in subsection (1), for the words "a hotel certificate or a public house certificate" there shall be substituted the words "a certificate (other than an off-sale certificate)".

28. In sections one hundred and eighty-nine, one hundred and ninety, one hundred and ninety-one and one hundred and ninety-four (which contain provisions regarding the prosecution of offences under the principal Act and appeals)—

(a) after the words "offences under this Act", wherever they occur, there shall be inserted the words "or under the Licensing (Scotland) Act, 1962"; and

(b) after the words "an offence under this Act", wherever they occur, there shall be inserted the words "or under the Licensing (Scotland) Act, 1962".

29. In section one hundred and eighty-nine (which contains provisions regarding the trial of offences)—

(a) in paragraph (c), after the words "this Act" there shall be inserted the words "or any offence under section twenty-one of the Licensing (Scotland) Act, 1962"; and

(b) in paragraph (e), after the words "one hundred and fifty-seven" there shall be inserted the word "or", and the words "or one hundred and sixty-six" shall be omitted.

30. In section one hundred and ninety (which provides for the appointment and remuneration of prosecutors), in subsection (2), after the words "any other business done by him under this Act" there shall be inserted the words "or under the Licensing (Scotland) Act, 1962".

31. In section one hundred and ninety-one (which relates to the expenses of prosecutions under the principal Act)—

(a) in subsection (1), after the words "any other business done by such a prosecutor or person under this Act" there shall be inserted the words "or under the Licensing (Scotland) Act, 1962";

(b) in subsection (2), for the words "one hundred and forty-five" there shall be substituted the words "one hundred and forty-eight" and the words "one hundred and sixty-six" shall be omitted.

32. In section one hundred and ninety-five (which restricts the bringing of proceedings against sheriffs, etc., on account of anything done in the execution of the principal Act), after the word "Act" there shall be inserted the words "or of the Licensing (Scotland) Act, 1962".

33. In section one hundred and ninety-six (which relates to the service of notices, etc.), after the word "Act" there shall be inserted the words "or under the Licensing (Scotland) Act, 1962".

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34. In section one hundred and ninety-eight (which contains certain exemptions and savings), after the word "Act", where first occurring, there shall be inserted the words "or in the Licensing (Scotland) Act, 1962".

35. In section one hundred and ninety-nine (which contains provisions for the interpretation of the principal Act)—

- (a) in subsection (1), after the word "Act", where first occurring, there shall be inserted the words "and in the Licensing (Scotland) Act, 1962", the definitions of "early-closing certificate" and "permitted hours" shall be omitted, and at the end of the definition of "special permission" there shall be inserted the words "or, as the case may be, under section eighteen of the Licensing (Scotland) Act, 1962";
- (b) in subsection (2), after the word "Act", where first occurring, there shall be inserted the words "or in the Licensing (Scotland) Act, 1962";
- (c) in subsection (4), after the word "Act", where first occurring, there shall be inserted the words "or in the Licensing (Scotland) Act, 1962", and at the end there shall be inserted the words "and in the First Schedule to the Licensing (Scotland) Act, 1962";
- (d) in subsection (6), after the word "Act", in the second, third and fourth places where it occurs, there shall be inserted the words "or the Licensing (Scotland) Act, 1962";
- (e) in subsection (7), after the word "Act", where first occurring, there shall be inserted the words "or in the Licensing (Scotland) Act, 1962" and after the word "Act" where secondly occurring, there shall be inserted the words "and the Licensing (Scotland) Act, 1962".

36. In the Second Schedule (which sets out the forms of certificate)—

- (a) in the form of certificate for a hotel, after condition (2) there shall be inserted the following condition—

"(2A) the certificate-holder shall not, either by himself or by any servant or agent, traffic in or supply any exciseable liquor on Sundays for consumption off the premises except to persons residing in the premises, for consumption by such a person or by a private friend of such a person who is bona fide entertained by, and at the expense of, that person as an ancillary to a meal supplied at, but to be consumed off, the premises";
- (b) in the said form, in condition (6), after the word "not" there shall be inserted the words "sell or";
- (c) in the said form, in condition (10), the words "or girls or boys" shall be omitted;

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- (d) in the said form, for condition (11) there shall be substituted the following condition—

“(11) the certificate-holder shall not permit the playing of any game in the premises in such circumstances that an offence under Part II of the Betting and Gaming Act, 1960, is committed or a requirement or restriction for the time being in force under section nineteen of that Act is contravened;”;

- (e) in the form of certificate for a public house, condition (4) shall be omitted;

- (f) in the said form, in condition (11), the words “or girls or boys” shall be omitted;

- (g) in the said form, for condition (12) there shall be substituted the following condition—

“(12) the certificate-holder shall not permit the playing of any game in the premises in such circumstances that an offence under Part II of the Betting and Gaming Act, 1960, is committed or a requirement or restriction for the time being in force under section nineteen of that Act is contravened;”;

- (h) in the form of off-sale certificate, for conditions (3) and (4) there shall be substituted the following conditions—

“(3) the certificate-holder shall not open the premises for the serving of customers with exciseable liquor earlier than eight o'clock in the morning, and shall close the premises for the serving of customers with such liquor not later than ten o'clock in the evening, on weekdays;

(4) the certificate-holder shall not open the premises for the serving of customers with exciseable liquor on Sundays;”.

37. In the Third Schedule (which sets out forms for use in connection with applications for certificates), in the form of application for the grant of a certificate, for the words “[or a certificate for a public house or an off-sale certificate in respect of premises, as the case may be.]” there shall be substituted the words “[or as the case may be]”.

38. In the Fourth Schedule (which sets out forms for use by clerks to licensing courts), for the form of register of applications there shall be substituted the following form—

Form of register of applications

Nos.	Names and designations of applicants	I For hotel certificates, and where premises are situated	II For restricted hotel certificates, and where premises are situated	III For public house certificates, and where premises are situated	IV For restaurant certificates, and where premises are situated	V For off-sale certificates, and where premises are situated	Persons recommending applicants	How disposed of	Applications for confirmation and appeals, and results thereof	Convictions under Licensing (Scotland) Acts, 1959 and 1962, and dates thereof
1.										
2.										

Note: The names and designations of new applicants for certificates must be entered separately in the register.

Section 26.

THIRD SCHEDULE
REPEAL OF ENACTMENTS

Session and Chapter	Short Title	Extent of Repeal
15 & 16 Geo. 6 & 1 Eliz. 2. c. 44.	The Customs and Excise Act, 1952.	In section one hundred and fifty-three, subsections (3) and (4).
7 & 8 Eliz. 2. c. 51.	The Licensing (Scotland) Act, 1959.	In section one hundred and eleven, subsections (2) to (5). In section one hundred and sixteen, paragraph (b) of subsection (2). Sections one hundred and twenty-three to one hundred and twenty-five. Section one hundred and twenty-seven. In section one hundred and twenty-nine, subsections (2) and (3). In section one hundred and thirty-one, subsection (6). In section one hundred and thirty-three, subsection (2). Sections one hundred and forty-five to one hundred and forty-seven. Section one hundred and sixty-six. In section one hundred and seventy-three, paragraph (j), and in the proviso the words "other than paragraph (j) thereof". In section one hundred and eighty-nine, in paragraph (e), the words "or one hundred and sixty-six". In section one hundred and ninety-one, in subsection (2), the words "one hundred and sixty-six". In section one hundred and ninety-nine, in subsection (1), the definitions of "early-closing certificate" and "permitted hours". In the Second Schedule, in the form of certificate for a hotel, conditions (4) and (5), and in condition (10) the words "or girls or boys"; in the form of certificate for a public house, conditions (4) and (5), and in condition (11) the words "or girls or boys"; in the form of off-sale certificate, condition (5).

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Session and Chapter	Short Title	Extent of Repeal
7 & 8 Eliz. 2. c. 58.	The Finance Act, 1959 ...	In the Second Schedule, paragraphs 6 and 7.
8 & 9 Eliz. 2. c. 60.	The Betting and Gaming Act, 1960.	In section twenty-six, in subsection (1), the words "and in any condition contained in any certificate granted under the Licensing (Scotland) Act, 1959".

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Industrial and Provident Societies Act, 1893	56 & 57 Vict. c. 39.
Friendly Societies Act, 1896	59 & 60 Vict. c. 25.
Customs and Excise Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 44.
Special Roads Act, 1949	12, 13 & 14 Geo. 6. c. 32.
Licensing (Scotland) Act, 1959	7 & 8 Eliz. 2. c. 51.
Road Traffic Act, 1960	8 & 9 Eliz. 2. c. 16.
Betting and Gaming Act, 1960	8 & 9 Eliz. 2. c. 60.

CHAPTER 52

An Act to increase the penalties for certain offences involving drunkenness or punishable under enactments relating to such offences. [1st August, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The maximum penalty to which a person is liable on any conviction for an offence under the provisions mentioned in this section shall, in the case of offences committed after the commencement of this Act, be increased as follows, that is to say—

Increase of
penalties for
drunkenness,
etc.

- (a) to a fine not exceeding five pounds where the conviction is under any of the provisions specified in paragraph (a) of subsection (2) of this section (which relate to offences of being drunk in public places or licensed premises or refusing to leave or attempting to enter a refreshment house or ship when drunk or disorderly); and